



Appeal Decision

Site visit made on 24 July 2026

by Victor Callister BA(Hons) PGC(Oxon) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6006123

Court Farm, Padbrook Lane, Elmstone, Kent CT3 1HF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Ron Bogun against the decision of Dover District Council.
 - The application Ref is 25/01256.
 - The development proposed is the conversion and change of use from light industrial shed to 3 dwellinghouses with associated garden, amenity space and parking.
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Decision

1. The appeal is dismissed.

Procedural Matters

2. Subsequent to the decision made by the Council on the application to which this appeal relates, the Government published a revised National Planning Policy Framework (August 2026) (the Framework). I have sought comments from the main parties on the revised Framework in relation to the appeal. It will therefore not prejudice any party by making my decision with regard to the revised Framework.
3. The appellant has submitted revised plan 2025/P/004-A with the appeal. This shows a change in dwellinghouses 1 and 2 of the application proposal, where bedroom 2 in each of these two proposed dwellings becomes a bathroom. This is intended to overcome the Council's concerns with regard to the effect on living conditions of occupants. The Council and other interested parties have had opportunity to comment on the revised plan; the Council have confirmed in their appeal submission that this overcomes reason 3 given in their decision notice of refusal of the application. I have accepted the revised plan in line with the Wheatcroft¹ principles and I am satisfied that reason 3 for the refusal of the original application relating to outlook and effect on living conditions can fall away. In this instance, lack of harm in this regard is a neutral factor in my considerations.

Main Issues

4. The main issues are:
 - whether the appeal property is suitable for the development proposed, having regard to local and national policies concerned with the location and sustainability of new development.
 - The effect on the provision of land for employment purposes.

¹ Bernard Wheatcroft Ltd v SSE [JPL 1982 P37]

Reasons

Suitable and Sustainable Development

5. The appeal site forms part of a cluster of light industrial, 3 residential properties, and other buildings and structures in unspecified use known as Court Farm. This is located off Padbrook Lane in the loose collection of properties that form the village of Elmstone. The existing building of the appeal site is a large modern barn type building, previously in agricultural use that was changed to a light industrial use, for which a certificate of lawfulness² has been issued. It is currently in use for timber storage and joinery, related to a sash window business.
6. The group of buildings at Court Farm bounded on either side on Padbrook Lane by residential properties. However, the appeal site is on the outer part the collection of buildings and structures at Court Farm and backs onto and is bounded by fields against which it is read and which form the wider backdrop and setting.
7. The proposal is for a change of use of the building on the appeal site from light industrial use (Use Class E) to Residential (Use Class C3) and the conversion and alteration of the building to create 3 new terraced dwelling houses. Each with generous gardens spaces and parking for 3 cars.
8. The appeal property is a large and functionally designed building with what appears to be concrete bonded asbestos roof panels, with a variety of concrete bonded asbestos panels and lapped timber cladding for walls. The proposal is to change to a black metal roof system with rooflights, and to have black vertical timber cladding with brick plinth, with additional areas of fenestration. However, I find that the proposed design of the conversion of the building on the appeal itself would not greatly affect its appearance as a utilitarian barn type building. However, the use of the other majority part of the appeal site as residential curtilage with large garden areas, with parking area for a total of 9 cars, along with the inevitable domestic paraphernalia which would arise from the proposed development, would urbanise and domesticate the appearance of the building and erode its present character as a functional rural barn type building within a farmyard and countryside setting.
9. The existing building and nearby buildings form an established enclave of development that is in keeping with the rural character of the area. Consequently, the proposal's domesticating effects would not enhance the character or appearance of the site or its immediate surroundings. Instead, they would be unsympathetic and harmful to the rural character and appearance of the local area of countryside. This would be contrary to Policies PM1 and SP4 of the Dover District Local Plan to 2040 (2024) (the Local Plan) and Policy DP3 of the Framework.
10. The 3 dwellings resulting from the proposal would be situated outside of the defined boundaries of any developed area, with the nearest defined settlement being Preston, located to the west of the Court Farm, from which it is separated by open fields. As such the proposal would result in the appearance of an isolated residential development in the countryside that would not meet the requirements set out in Policy HO11 of the Framework, requiring the proposed dwellings to either provide essential need for a rural worker, be appropriate enabling development to secure the future of heritage assets, reuse a redundant or disused building and

² Planning Ref: 22/00620

enhance its immediate setting, the subdivision of an existing residential building or that the design is of exceptional quality. None of which apply to the appeal proposal.

11. Further, the proposed dwellings would be in a location with very poor and unsafe access to nearby services and public transport, requiring the use of unlit country lanes without footways as pedestrians or cyclists, or more likely the use of a motor vehicle. This would be contrary to Policy SP4 of the Local Plan and Policy S5 and T3 of the Framework, which collectively seek residential development in urban areas or other defined settlements, or if a change of use of an existing building in the open countryside, to meet the criteria or criterium set out in Policy HO11 or be within reasonable walking distance of a well-connected station and be physically well-related to the station or the settlement within which the station is located.

Land for Employment

12. The appeal building is currently in use for timber storage and joinery by a sash window business. As a light industrial use withing Use Class E the appeal dwelling currently provides employment within the local rural area. The proposed change of use of the appeal building to 3 dwellings in Use Class C3, would result in a reduction in the amount of available land for employment purposes, in a rural location within the Council area.
13. Policy E2 of the Local Plan sets out that proposals that would result in the loss of existing employment sites, where they are not allocated in the Local Plan for alternative use, will only be supported where they would not result in a significant or harmful reduction in supply of such land, having regard to the type of employment land and its location, and that it has been demonstrated that employment use is no longer suitable or viable.
14. In order to demonstrate that a site is no longer viable for an employment use, the Local Plan sets out that, where the proposal is not in an area allocated in the local plan for alternative use, robust evidence must be provided that the premises have been marketed unsuccessfully for both the existing uses and any alternative suitable employment uses for a period of at least 12 months for such proposals. Policy E2 of the Framework also makes explicit reference to market signals in planning for employment land and floorspace. No marketing or other information with regard to the likelihood of obtaining a user for the building its current use or alternative suitable employment use has been provided by the appellant, and the requirements of this policy have not been met.
15. The appellant has however set out intentions, as owner and operator of the current business using the appeal building, with regard to retirement and closure of the business. This is a personal choice for the appellant and the potential consequences of any decision made by the appellant with regard to the future use, maintenance and condition of the appeal building as set out in by the appellant is also a matter for them to consider. As such these are not a direct planning matters and I afford no significant weight to them in my considerations.
16. The appellant has drawn attention to Certificates of Lawfulness granted for the residential use of the Pole Barn and Bungalow at Court Farm. Whilst these do demonstrate that residential occupation within the building cluster at court farm is established and is a mixed use cluster, the original use, small scale and location of these properties within a farmyard and not open countryside setting, varies considerably from that of the appeal site as a large building in light industrial use in

an open countryside setting. I have therefore given these only moderate weight in my considerations.

17. The appellant has also drawn attention to agricultural buildings within the immediate local area for which approval of a prior approval applications have been issued for permitted development of changes of use to dwelling in Use Class C3 at Moonglow and Summercrisp. These would have been considered on their own individual merits and the planning regime in place at the time. However, a prior approval application has not been made or assessed for the appeal site. As such, I find that it has not been demonstrated by the appellant that the proposal would meet the requirements for such an assessment. Therefore, I find that a legitimate fallback position for the appellant to exercise a permitted development site does not reasonably exist in this instance.
18. The appellant has also drawn attention to the approval³ of 9 caravans and amenity block and conversion of a farm building to a dwelling at a nearby farm, considered by the Council under the operation of the previous local plan, which was determined with significant weight being given to farming requirements, which is not a consideration in this instance and, notwithstanding the re-use of an existing building, does not therefore provide a convincing exemplar for the appeal proposal. Consequently, I have afforded this only moderate weight in my considerations.
19. For the reasons given above, I find that the appeal property would not be suitable for the proposal, which would encroach on open countryside and result in isolated dwellings, with an urbanising and domesticating effect, harmful to the rural character of the area, with no safe access to public transport and services for pedestrians and cyclists and with an unsustainable reliance on the private car. Further, for the reasons given I find that the proposal would result in the unjustified loss of employment land, to which I have given substantial weight in my considerations.
20. This would be contrary to policies PM1, SP4 and E2 of the and Local Plan and Policies DP3, HO11, S5, T3 and E2 of the Framework. Collectively these seek developments that are of high quality design that respond to context so that they integrate with and enhance their surroundings. Are walkable and have safe access to public transport, facilities and services, adjoin existing settlement boundaries or if isolated in the countryside meet the specific criteria set out above. Do not result in the loss of employment land without robust marketing or other information with regard to the likelihood of obtaining a user for the building its current use or alternative suitable employment use.
21. The proposal would have the benefit of resulting in 3 new dwelling houses. Collectively small housing developments make a significant contribution to the delivery of new housing, to which I have given substantial weight, although the creation of 3 new houses in isolation would make only a small contribution to housing in the Council area. However, I find that this does not outweigh the harm through the creation of isolated housing in the countryside and the loss of employment land, to both of which I have afforded substantial weight in my considerations. As such, I do not find that the proposal would result in sustainable development.

³ Planning Ref: DOV/20/00425

22. As I have found, for the reasons given, that the proposal is not sustainable development, I do not consider it necessary to pursue the submission of a planning agreement with regard to achieving the required Biodiversity Net Gain, as suggested by Council.

Conclusion

23. The appeal is dismissed.

Victor Callister

INSPECTOR